

Once a court grants a motion to compel arbitration, the case enters what has been called “the twilight zone of abatement,” in which the court maintains “merely a vestigial jurisdiction over matters submitted to arbitration.” (*Brock v. Kaiser Foundation Hospitals* (1992) 10 Cal.App.4th 1790, 1796.) This vestigial jurisdiction generally “consists solely of making the determination, upon conclusion of the arbitration proceedings, of whether there was an award on the merits ... or not....” (*Id.*) It follows that this court has no jurisdiction to adjudicate discovery motions pertaining to this lawsuit.

Accordingly the court lacks jurisdiction to rule on this discovery motion and it is dropped from calendar without prejudice.

Courtroom Clerk's Session

16. 1:30 PM CASE NUMBER: C25-01931
CASE NAME: NOEL LINARES VS. THI TRANG NGUYEN
ISSUE CONFERENCE AND TRIAL PLANNING. ALL PARTIES WITH SETTLEMENT AUTHORITY SHALL
APPEAR IN PERSON IN D32. DEF ADJUSTER MAY ATTEND REMOTELY
FILED BY:

TENTATIVE RULING:

Parties to appear.

Law & Motion Add On

17. 9:00 AM CASE NUMBER: C25-02254
CASE NAME: REID GREENLAW VS. TERESA TRUONG
***MOTION/PETITION TO COMPEL ARBITRATION ADVANCED PER TR ON 6/26/26**
FILED BY: TRUONG, TERESA

TENTATIVE RULING:

Before the Court is a motion to compel arbitration filed by Defendant Emeritus Corporation dba Brookdale Danville (erroneously sued as Brookdale Danville), Defendant Brookdale Living Communities, Inc., Defendant Brookdale Senior Living Communities, Inc., Defendant Brookdale Senior Living Foundation, and Defendant Teresa Truong (collectively, “Defendants”). For the reasons set forth below, the motion is **granted**. The action shall be **stayed** pending completion of the arbitration.

The Plaintiffs’ motion for trial preference, continued to August 7, 2026 by the court’s order dated June 26, 2026, is **denied** as moot in light of this ruling.